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|     |                                                                 | Plaintiff is ordered to give notice of the ruling, including to the LWDA, and file proof of service.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 101 | <b>Stevens vs. Monsanto Company</b><br><br><b>2024-01385636</b> | <p><b>Motion to Appear Pro Hac Vice</b></p> <p>The Application of Jeffrey L. Haberman for Admission to Appear Pro Hac Vice is <b>CONTINUED to May 22, 2025, at 2:00 p.m. in Department CX102</b> so that the applicant can address the following defects in the Application:</p> <ul style="list-style-type: none"> <li>• Counsel must attest as to whether he has submitted any <i>pro hac vice</i> applications in California within the past two years and provide the case name, case number, and court pertaining to those applications, or confirm that he has not submitted any such applications.</li> <li>• Missing proof of service on and proof of payment of the required fee to the State Bar of California.</li> </ul> <p>Supplemental or amended papers must be filed no later than fourteen (14) calendar days prior to the continued hearing.</p> <p>Plaintiff's counsel, Martin Schmidt, is ordered to give notice of this ruling.</p> <p><b>OSC re Dismissal</b></p> <p>The Order to Show Cause re Dismissal of Newer Case issued by this Court on March 5, 2025 is DISCHARGED. Counsel for Plaintiff Thomas C. Stevens has filed a Request for Dismissal, without prejudice, of <b>the entire action known as <i>Stevens v. Monsanto Company</i>, Case No. 2024-01387159</b>, and that duplicate action was dismissed on March 6, 2025.</p> <p>Clerk to provide notice</p> <p><b>Case Management Conference</b></p> |

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| <p><b>102</b></p> | <p><b>ALONZO vs. WL HOMES LLC</b></p> <p><b>2022-01298485</b></p>  | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Attorneys Darren M. Ebner and Lisette M. Baptiste of Springel &amp; Fink, LLP move to be relieved as counsel of record for Cross-Complainant and Cross-Defendant FCM Fireplaces, Inc. aka FCM Fireplaces, LLC ("FCM"). The Motion To Be Relieved As Counsel is GRANTED.</p> <p>IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel will remain counsel of record for FCM until the Proof of Service of the signed Order is filed.</p> <p>The court hereby sets an Order to Show Cause why FCM's answer should not be stricken and/or its Cross-Complaint dismissed due to FCM being a corporate entity but not having an attorney of record. <u>CLD Construction, Inc. v. City of San Ramon</u> (2004) 120 Cal. App. 4th 1141, 1150.</p> <p><b>The OSC hearing is set for August 14, 2025 at 9:30AM.,</b> when the next Status Conference is set. FCM therefore has roughly four months to obtain new counsel.</p> <p>Counsel is ordered to give notice of the ruling.</p> |
| <p><b>103</b></p> | <p><b>BARRAZA vs. WL HOMES LLC</b></p> <p><b>2023-01304774</b></p> | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Attorneys Darren M. Ebner and Lisette M. Baptiste of Springel &amp; Fink, LLP move to be relieved as counsel of record for Cross-Complainant and Cross-Defendant FCM Fireplaces, Inc. aka FCM Fireplaces, LLC ("FCM"). The Motion To Be Relieved As Counsel is GRANTED.</p> <p>IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel will remain counsel of record for FCM until the Proof of Service of the signed Order is filed.</p> <p>The court hereby sets an Order to Show Cause why FCM's answer should not be stricken and/or its Cross-Complaint dismissed due to FCM being a corporate entity but not having an attorney of record. <u>CLD Construction, Inc. v. City of San Ramon</u> (2004) 120 Cal. App. 4th 1141, 1150.</p> <p><b>The OSC hearing is set for August 14, 2025 at 9:30AM.,</b> when the next Status Conference is set. FCM therefore has roughly four months to obtain new counsel.</p>                                                         |